

SENATE BILL 2039

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 40,
Chapter 3, relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 3, Part 2, is amended by adding the following new section:

Notwithstanding another law to the contrary, upon the enactment of the cost authorized by § 40-3-106, the fees and assessments established in this part for fraud and economic crimes must not be enforced within that county. Any existing funds collected under this part that are in the possession, custody, or control of a district attorney general must be held and retained by the district attorney general until the balance of the funds collected pursuant to § 40-3-106 equals or exceeds the balance of the fraud and economic crimes prosecution funds deposited into the account established by § 40-3-207, at which time the balance of the funds deposited into the account established by § 40-3-207 must revert to and be remitted back to the county government of original assessment and collection.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.